

7	Wells Fargo Bank, N.A. vs. Hellman	TENTATIVE RULING: <u>Motion to Vacate</u> Plaintiff Wells Fargo Bank, N.A., moves to vacate the dismissal and enter judgment against Defendant Cheyenne Hellman pursuant to the parties' stipulation. For the following reasons, the motion is DENIED without prejudice. Plaintiff served the motion on Defendant at 1010E Yorba Linda Blvd, Apt 1083, Placentia, CA 92870. According to the most recent document filed by Defendant, a Case Management Statement filed on June 23, 2022, Defendant is represented by Daniel S. March in Tustin. No substitution of attorney has been filed since. According to the Stipulation for Entry of Judgment executed by Defendant, "All notices, correspondence or communications of any type from Plaintiff to Defendant shall be directed to Defendant, unless Plaintiff is otherwise directed by Defendant, or someone acting on Defendant's behalf. Furthermore, notices maybe sent by fax or email." (Mulhorn Dec., Ex. 1 at ¶ 14.) But this motion is not a "notice, correspondence, or communication." The court notes that Plaintiff has previously filed a substantially similar motion in 2024, in which the court already addressed these service defects. Despite the court previously continuing the hearing on the prior motion to give Plaintiff an opportunity to cure the service defect, Plaintiff failed to do so, which led to the denial of Plaintiff's previous motion. Yet, two years later, Plaintiff files the same motion, containing the same service defects without explanation. To the extent that Plaintiff intends on filing any further motions to vacate under § 664.6, service must be made on both Defendant and Defendant's counsel. Plaintiff to give notice.
8	Amaro Lebron vs. Mazda Motor Corporation	OFF CALENDAR
9	Bolanos vs. General Motors, LLC	TENTATIVE RULING: For the reasons set forth below, Defendant General Motors, LLC's motion for summary judgment is DENIED, without prejudice.

Statement of Law

“Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (*Aguilar*, *supra*, 25 Cal.4th at 855, italics original.)

In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar*, *supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1083-1084, quoting *Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.* (1988) 199 Cal.App.3d 791, 795.) “If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.”

(*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, quoting *Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (*Johnson v. United Cerebral Palsy, etc.* (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

Here, Defendant moves for summary judgment on the single cause of action under the Magnuson-Moss Warranty Act in the “First Amended Complaint.”

No First Amended Complaint on File

“A summary judgment motion is directed to the issues framed by the pleadings”. (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268). The court looks to the pleadings as “the outer measure of materiality” in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.)

Here, Defendant contends that it is entitled to judgment because Plaintiff cannot maintain a Magnuson-Moss Warranty Act (MMWA) without a viable state law claim. Defendant moves for summary judgment “on the single cause of action in Plaintiff’s First Amended Complaint. . . .” (Motion, 1:27-28).

Defendant contends that Plaintiff sued Defendant GM on October 17, 2024, alleging two counts for violation of the Song Beverly Act, and

then filed his First Amended Complaint on March 13, 2025, asserting only a single count for violation of the Magnuson-Moss Warranty Act.

However, there is no First Amended Complaint on file.

On March 13, 2025, Plaintiff filed a motion for leave to file First Amended Complaint. (See ROA 22). Plaintiff's counsel included a declaration, wherein he attached a copy of "[t]he redline version of the Proposed First Amended Complaint." (Decl. of Neal F. Morrow, ¶ 8, Ex. 1). Exhibit 1 is a redlined version of the proposed FAC containing proposed deletions and the proposed additions. No clean copy was attached.

On 10/29/25, this court granted the motion, and held as follows: "Plaintiff is ordered to file and serve a clean copy of the First Amended Complaint within 10 days." (See 10/29/25 Order [ROA 54]). The court stated again, in the Order: "For these reasons, the court grant's the motion and orders Plaintiff to file and serve a 'clean' copy of the First Amended Complaint." (*Id.*).

On December 2, 2025, the court held a case management conference with both parties in attendance. The court continued the CMC to 4/28/26, but also stated the following: "Court notes First Amended Complaint has not been filed in this matter." (See 12/2/25 Order [ROA 71]). Notably, this was the same day that Defendant filed the instant motion. Accordingly, the parties were alerted to the fact that no FAC had been on file as of 12/2/25.

To date, no FAC has been filed. Nor has a response to the FAC been filed.

As previously stated, a summary judgment motion "is directed to the issues framed by the pleadings". (*Canales, supra*, 23 Cal.App.5th at 1268). Defendant's motion for summary judgment is directed to a non-existent cause of action under the MMWA in the "FAC" that was never filed.

Accordingly, the motion is denied, but without prejudice as to refile in the event Plaintiff files a copy of his First Amended Complaint.

Defendant to give notice.